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Date sent to QME: 09/08/2025

DEFENDANT'S QME
ADVOCACY LETTER

Re: Applicant:
Employer:
EAMS No:
Venue:
Claim No:
Our File No:

Dear Dr

Thank you for agreeing to serve as orthopaedic Panel Qualified Medical Evaluator with reference to the applicant. Your examination of this applicant is scheduled to take place on September 9, 2025, at 09:00 a.m. in your California office. Each party will be submitting its own advocacy letter to you along with a schedule of records. Please limit your examination only to your medical specialty of orthopaedic surgery.

By way of background, the applicant was a 43-year-old front-end supervisor for a Costco warehouse in Montclair who sustained an accepted left knee injury on July 24, 2024. He apparently was moving steel with a forklift, stepped down on the forks of the forklift and fell forward.

All medical treatment reports and records received to date are enclosed for your review along with any records received.

Once you have had an opportunity to examine this applicant, please do issue your report commenting on all of the below interrogatories.

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Please note further, you are authorized to request any diagnostic studies you feel necessary. However, if you prefer, please make certain that a prescription or Order for diagnostic studies is forwarded to the defendant who will have them scheduled through its preferred vendor.

Once you have evaluated the applicant, please do respond to all of the below interrogatories.

You are authorized to perform whatever diagnostic tests you deem necessary, excluding hospitalization.

Consistent with the new Workers' Compensation Regulations, please use the 2005 AMA Guides on whole body impairment to determine the appropriate level that Applicant is impaired and by which injury and part of body.

It is requested that you review the records, conduct evaluation of the Applicant, and after doing both, prepare a comprehensive report addressing the usual worker's compensation issues, including the following:

- 1) What objective findings of disability are present on examination, if any? Are the findings consistent with the history of injury?
- 2) How would you categorize Applicant's subjective complaints in workers' compensation terminology? Please provide both the frequency and severity.
- 3) If disability exists as a result of the injury, is it temporary total, temporary partial or Permanent and Stationary for rating purposes?
- 4) If Permanent and Stationary, please state with specificity, when the Applicant reached that status.
- 5) If the Applicant is now Permanent and Stationary, please outline any factors of Permanent Disability based on the AMA Guides of Evaluation of Permanent Impairment (5th Edition).
- 6) If the condition is Permanent and Stationary, please give the parties your opinion as to the period of temporary total disability, if any which you feel would be reasonable in this case.
- 7) Is the Applicant in need of ongoing medical treatment to cure or relieve the effects of the industrial injury at this time? If so, please specify the specific nature and anticipated duration of that treatment.
- 8) In connection with the history given to you by the Applicant, please advise the parties if there is any part of this Applicant's present Permanent Disability which should be apportioned. Apportionment is now determined by a finding of what approximate percentage of the Permanent Disability was caused by the direct result of the injury arising out of and occurring in the course of employment. If appropriate, what approximate percentage of the Permanent Disability was caused by other factors both before and subsequent to the industrial injury, including prior industrial injuries? If you are unable to include an apportionment determination in your report, please state the specific reasons

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why you could not make a determination of the effect of that prior condition on the Permanent Disability arising from the injury.

- 9) Should the Applicant be alleging more than one injury, please be sure to address apportionment among the injuries pursuant to the Benson case.
- 10) Please comment on whether you feel the Applicant is capable of returning to their usual and customary occupation. Should you feel the Applicant is unable to return to her usual and customary job duties, please provide us with a detailed list of permanent work restrictions which would allow the Applicant to return to the same.

Upon completion of your evaluation report, would you please send the original to the attorneys of record including:

1)

[REDACTED]

2)

[REDACTED]

Thank you for continuing to serve as panel qualified medical evaluator in this case.

Very truly yours,

QUINTAIROS, PRIETO, WOOD & BOYER, P.A.

[REDACTED]

cc:

[REDACTED]

SCHEDULE OF RECORDS

RE [REDACTED] vs COSTCO
QME exam w/ Dr. [REDACTED] 9/9/2025 at 9:00 am

<u>Medical Reports</u>	<u>Date</u>	<u>Page Count</u>
[REDACTED]	4/6/25	
[REDACTED]	3/17/25;	
[REDACTED]	8/19/24	
[REDACTED]	8/29/24; 8/12/24; 7/26/24; 7/25/25	
[REDACTED]	7/27/24	
<u>Subpoenaed Records</u>		
NONE		
<u>Other Documents</u>		
Application for Adjudication of Claim; Claim Form	N/A	6
Defendant's PQME Doctor Letter and Schedule of Records		4
	TOTAL PAGE COUNT	130